

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201806017	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/14/2018 6:30 PM	Location of Incident: Sterling Place between Brooklyn Avenue and New York Avenue	18 Mo. SOL 1/14/2020	Precinct: 77
Date/Time CV Reported Sat, 07/14/2018 6:32 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/23/2018 10:54 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Dionisi	15890	957550	077 PCT
2. POM Rochael Vasquez	10909	960049	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rochael Vasquez	Abuse: Police Officer Rochael Vasquez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated
B . POM Joseph Dionisi	Abuse: Police Officer Joseph Dionisi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Substantiated

Case Summary

On July 14, 2018, § 87(2)(b) called 911 and filed the following complaint with IAB. His complaint received original log number § 87(2)(b) which was forwarded to the CCRB as referral log number § 87(2)(b) where it was received on July 23, 2018.

At approximately 6:30 p.m. on July 14, 2018, § 87(2)(b) and his friend, § 87(2)(b) were driving westbound on Sterling Place in Brooklyn when they were pulled over by Police Officer Rochael Vasquez and Police Officer Joseph Dionisi, both of the 77 Precinct (**Allegations A and B: Abuse of Authority: Vehicle Stop—Substantiated**). Upon approaching § 87(2)(b)'s vehicle, PO Vasquez told § 87(2)(b) that he was being pulled over because of a defective left brake light. § 87(2)(b) gave PO Vasquez his license and registration and the two officers went back to their car. After approximately three minutes, the two officers walked back to § 87(2)(b)'s car and PO Vasquez handed § 87(2)(b) his license and registration and told him to get his left brake light fixed. § 87(2)(b) was not summonsed or arrested.

§ 87(2)(b) recorded a continuous video of the entire incident and provided it to the investigation (**Board Review 1**).



201806017_20180831_1334_DM.MOV

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Rochael Vasquez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: Police Officer Joseph Dionisi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) provided a statement over the phone on August 14, 2018 (**Board Review 2**) and was interviewed at the CCRB on August 28, 2018 (**Board review 3**). § 87(2)(b) gave a statement over the phone on September 5, 2018 (**Board Review 4**). PO Vasquez was interviewed on October 5, 2018 (**Board Review 5**). PO Dionisi was interviewed on October 19, 2018 (**Board Review 6**).

It is undisputed that on the incident date, § 87(2)(b) and § 87(2)(b) were in a white Nissan sedan driving westbound on Sterling Place in Brooklyn. PO Vasquez and PO Dionisi were in a marked police SUV driving behind them and pulled them over on Sterling Place between Brooklyn Avenue and New York Avenue. After the vehicle stop, PO Vasquez told § 87(2)(b) that his left brake light was not working.

In his sworn statement, § 87(2)(b) stated that his car was stopped at a red light on Sterling Place when a police car drove by in front of his car on the intersecting avenue. As the police car drove by, PO Vasquez, who was driving, quickly jerked his head in the direction of § 87(2)(b) and § 87(2)(b). The car continued to drive down the avenue. Then, a few blocks later, as § 87(2)(b) crossed through the intersection of Troy Avenue and Sterling Place, he noticed the police vehicle turning left onto Sterling Place behind him. The officers pulled him over

between Brooklyn Avenue and New York Avenue. § 87(2)(b) stated that he believed the officers had seen him and gone around the block so that they could continue to follow him.

After being pulled over, § 87(2)(b) told § 87(2)(b) to record the incident. PO Vasquez asked § 87(2)(b) for his license and registration and § 87(2)(b) asked PO Vasquez why he was being pulled over. PO Vasquez told § 87(2)(b) that his taillight was broken. § 87(2)(b) responded that his tail light was not broken. § 87(2)(b) then gave PO Vasquez his license and registration and both officers walked back to their car. The officers returned from their vehicle and PO Vasquez gave § 87(2)(b) his license and registration back. § 87(2)(b) asked the officers if he could get out to check his taillight. § 87(2)(b) felt sure that it was not broken because he had recently gotten an inspection. PO Vasquez told § 87(2)(b) he could get out of the vehicle. § 87(2)(b) told § 87(2)(b) to record the taillight while he stepped on his brakes because stepping on the brakes triggers the brake lights to turn on. § 87(2)(b) said the lights were all working.

§ 87(2)(b)'s phone statement was generally consistent with his sworn statement.

In his phone statement, § 87(2)(b) was generally consistent with § 87(2)(b) although he did not notice the officers until they began driving behind them. He first saw the police vehicle when it turned off of Brooklyn Avenue onto Sterling Place. The officers then pulled them over between Brooklyn Avenue and New York Avenue. After the officers gave § 87(2)(b) his license and registration back, § 87(2)(b) asked if he could step out of the car. He got out and filmed the brake lights to show that they were working. § 87(2)(b) stated that § 87(2)(b) made no illegal turns and that the car, including its brake lights, was working properly.

In his statement, PO Vasquez said that when his car got to Sterling Place and an intersecting avenue (possibly Kingston Ave.) he noticed that the car directly in front of his, a white Nissan sedan, had a left brake light that did not light up when it stopped. The right brake light was functional and the left one was not. PO Vasquez spoke about this with his partner, PO Dionisi, who also noticed the defective brake light. PO Vasquez continued driving on Sterling Place and at the next intersection (possibly Brooklyn Ave.) he noticed the white Nissan stop again. Again, the left brake light did not turn on.

The officers then pulled the white Nissan over between Brooklyn Avenue and New York Avenue. Once they got § 87(2)(b)'s license and registration, PO Vasquez and PO Dionisi checked § 87(2)(b)'s name for open warrants and to see if his documentation was valid. They used their discretion and did not issue § 87(2)(b) a summons. When shown video of the brake lights functioning immediately after the stop, PO Vasquez acknowledged that the left brake light was functioning properly. He maintained that he observed § 87(2)(b)'s vehicle stop twice before pulling him over, and on both of those occasions, the left brake light did not turn on.

In his statement, PO Dionisi was generally consistent with PO Vasquez, although he only noticed the defective brake light on one occasion. He said he first noticed the white Nissan sedan when it was one car length in front of them at the intersection of Brooklyn Avenue and Sterling Place. When the car stopped at the intersection, its left brake light did not illuminate. PO Dionisi spoke with PO Vasquez, who also noticed the defective brake light. They agreed to pull the car over. Once they got § 87(2)(b)'s documentation they checked his information and then let § 87(2)(b)

§ 87(2)(b) go without issuing him a summons. PO Dionisi said it was a clear day and there were no problems with visibility. When shown the video of the incident, PO Dionisi acknowledged that the left brake light was functioning properly when the video was taken.

The cell phone video footage taken by § 87(2)(b) (**Board review 1**, transcribed in **Board review 7**) shows PO Vasquez and PO Dionisi get out of their car and approach § 87(2)(b)'s car. PO Vasquez asks § 87(2)(b) for his license and whether the car is registered to him. § 87(2)(b) asks PO Vasquez why he is being pulled over. The camera turns and focuses on PO Dionisi and in the background, PO Vasquez can be heard saying, "Your left brake light is out," (timestamp 0:22). § 87(2)(b) immediately tells PO Vasquez that his brake light is not out. § 87(2)(b) then tells PO Vasquez that he observed him watching him and then come around the block to pull them over. PO Vasquez said he observed § 87(2)(b) while driving behind him. The officers walk back to their vehicle (timestamp 1:40).

PO Vasquez and PO Dionisi then walk back to § 87(2)(b)'s car (timestamp 4:25). PO Vasquez hands § 87(2)(b) his license and registration and tells § 87(2)(b) to get his left taillight fixed. § 87(2)(b) asks PO Vasquez if he can get out of his car and check his lights. PO Vasquez and PO Dionisi are walking back to their car, and PO Vasquez says, "Do what you gotta do." § 87(2)(b) gets out and walks to the back of the car while filming. § 87(2)(b) can be heard saying, "Look at the light. Look at the light. I'm going to step on the brake." The video captures both of § 87(2)(b)'s vehicles taillights. Both taillights and both center brake lights are lighting up and all appear fully functional (timestamp 4:47).

According to *People v. Ingle* a vehicle stop is legal so long as it is not the product of mere whim, caprice, or idle curiosity. It is enough if the stop is based upon specific and articulable facts which, taken together with rational inferences from those facts, reasonably warrant the intrusion. (*People v Ingle*, 36 NY2d 413 [1975].) (**Board Review 8**)

According to Section 375 of New York State Vehicle and Traffic Law, "Every motor vehicle, except a motorcycle, operated or driven upon the public highways of the state, if manufactured on or after January first, nineteen hundred fifty-two, shall be equipped with at least two stop lamps, one on each side, each of which shall display a red to amber light visible at least five hundred feet from the rear of the vehicle when the brake of such vehicle is applied (**Board Review 9**)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one previous CCRB complaint (**Board Review 10**).
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) is a party (**Board review 11**).
- PO Vasquez has been a member-of-service for three years and this is the fourth CCRB complaint to which he has been a subject (**Board Review 12**)
 - CCRB Case 201709194 involved two allegations of Force and was closed pending litigation.
 - CCRB Case 201807111 involves two allegations of Offensive Language and one allegation of Discourtesy. It is currently open.
 - CCRB Case 201807477 involves two allegations of Abuse of Authority. § 87(2)(g) It is currently open.
- PO Dionisi has been a member-of-service for three years and this is the second CCRB complaint to which he has been a subject (**Board Review 13**)
 - CCRB Case 201807083 involves an allegation of force. It is currently open.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A request for any Notice of Claim regarding this incident was submitted to the New York City Comptroller's Office. Neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim (**Board Review 16**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date